

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FormuKleen, Inc.

Complainant,

v.

Top Shipping Systems, Corp.

Respondent.

RESPONDENT'S RESPONSE TO MOTION FOR A PROTECTIVE ORDER

Comes Now the Respondent and would respond to the Motion for A Protective Order and would state the following:

1. The Complainant did not make a good faith effort to resolve this issue.

The undersigned repeatedly requested that a proposed confidentiality agreement be provided for review, as it is standard practice to share such a document with opposing counsel. At no time did the undersigned refuse to consider an agreement. Instead, Complainant relies on semantics, as the Motion was the first occasion on which any proposed agreement was actually provided.

2. As with other filings by Complainant, the Motion for Protective Order was filed after the applicable deadline. While Respondent's counsel is generally willing to extend professional courtesies when requested, no such request was made regarding an extension of time. By contrast,

Complainant opposed even a brief extension of time for Respondent to respond to the Motion for Summary Judgment.

3. The Respondent did respond in a timely manner to Discovery and is even supplementing its responses further despite the Complainant producing no documents, not even those that are not Confidential.
4. The Judicial Order of June 23, 2025, in this case states that the parties may enter into a Confidentiality Order but does not require it.
5. Nevertheless, Counsel is prepared to review the agreement and would ask that any order be binding on both sides and the parties be encouraged to come to an agreement and the Complainant should produce documents that are not Confidential immediately and those that are Confidential immediately upon an agreement being reached by the parties and/or if so ordered in this proceeding.

Wherefore, the Respondent files this its Response to the Motion for a Protective Order.

Dated: September 19th, 2025

CERTIFICATE OF SERVICE

I certify that on this 19th day of September 2025, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:
Sara Dandan
FourOneOne LLC
2501 Chatham Rd, Suite 8082
Springfield, IL 62704
Email: sara@fouroneone.io
Secretary of FMC <secretary@FMC.gov>

Judges judges@fmc.gov

Respectfully submitted,

Daniel W. Raab. P.A.

s/Daniel W. Raab

Daniel W. Raab, Esq.

9555 North Kendall Drive Suite 210

Miami, Florida 33176

Bar Number 264199

Telephone: 305-598-5517

Facsimile: 305-598-5593

Email: raabdaniel57@gmail.com

Attorney